

**PLACER COUNTY SUPERIOR COURT
CIVIL LAW AND MOTION TENTATIVE RULINGS
TUESDAY, JUNE 30, 2026**

These are the tentative rulings for civil law and motion matters set at **8:30 a.m. on Tuesday, June 30, 2026**. The tentative ruling will be the court's final ruling unless notice of appearance and request for oral argument are given to all parties and the court by **4:00 p.m., Monday, June 29, 2026**. Notice of request for oral argument to the court must be made by calling (916) 408-6481. Requests for oral argument made by any other method will not be accepted. Prevailing parties are required to submit orders after hearing to the court within 10 court days of the scheduled hearing date, and after approval as to form by opposing counsel. Court reporters are not provided by the court. Parties may provide a court reporter at their own expense.

Except as otherwise noted, these tentative rulings are issued by the **HONORABLE TRISHA J. HIRASHIMA** and if oral argument is requested, it will be heard at 8:30 a.m. in **Department 42**, located at 10820 Justice Center Drive, Roseville, California 95678.

PLEASE NOTE: REMOTE APPEARANCES ARE STRONGLY ENCOURAGED FOR ALL CIVIL LAW AND MOTION MATTERS. (Local Rule 10.24.) More information is available at the court's website: www.placer.courts.ca.gov.

1. M-CV-0086393 LVNV Funding v. Kumansky, Alex

Plaintiff is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion to Enforce Settlement

Plaintiff moves to enforce the settlement agreement pursuant to Code of Civil Procedure section 664.6. While a proof of service was filed showing service on an attorney R. Reed Pruyn, there is nothing in the court's file that shows defendant has an attorney of record. The motion is continued to be heard on **August 11, 2026 at 8:30 a.m. in Department 32**. By July 7, 2026, plaintiff is directed to file and serve a notice of continued hearing, serve all moving and supporting papers on defendant directly, and file all proofs of service with the court.

2. M-CV-0088489 Synchrony Bank v. Walton, Colleen

Motion to Enforce Settlement under CCP 664.6

Plaintiff's request for judicial notice is granted.

Plaintiff moves the court to enforce the settlement agreement against defendant. Code of Civil Procedure Section 664.6, subdivision (a) provides "[i]f parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement." (Code Civ. Proc., § 664.6 (a).) Here, plaintiff submits a signed settlement agreement executed between the parties. (See Pl. Decl. Exh. 1.) Pursuant to the terms of the stipulation, defendant was to make payments to the plaintiff. Defendant made payments totaling \$660.00 and stopped making payments required by the stipulation. (Decl. Pl. Counsel ¶¶ 5-6.) Pursuant to the terms of the stipulation, in the event of a default, judgment is to be entered in favor of the plaintiff and against defendant for the principal amount of suit, less a credit for all payments received under the terms of the stipulation. (Decl. Pl. Counsel Exh. 1 ¶ 5.)

The parties signed the agreement, thereby satisfying CCP §664.6's requirement that the settlement be in writing and signed by the parties. The defendant has not submitted an opposition.

Therefore, based on the record, plaintiff's motion to enforce settlement under CCP 664.6 is granted. Plaintiff shall submit a proposed form of judgment.

3. M-CV-0095785 Wani, Prashant v. McFarland, Heather

Defendant's Motion to Vacate Default and Default Judgment

Defendant Heather McFarland moves to set aside the default and the judgment for possession entered on February 11, 2026. (Def. Mot. pg. 3.)

Defendant claims in her motion that she did not refuse to comply with the 3-day notice to pay or quit, but that the plaintiff refused to accept rent. Defendant provides no explanation for her failure to respond to the complaint within the time required by law. Although defendant refers to Code of Civil Procedure section 473.5, she makes no showing that service of summons did not result in actual notice.

Code of Civil Procedure section 473(b) provides:

The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a

copy of the answer or other pleading proposed to be filed therein,
otherwise the application shall not be granted...

Even if defendant demonstrated mistake, inadvertence, surprise, or excusable neglect, which she has not, her motion is not accompanied by a proposed answer or other pleading to be filed.

Finally, possession of the subject property was restored to plaintiff on or about March 3, 2026. Defendant provides no authority for the contention that a judgment for possession may be set aside under these circumstances.

Based on the foregoing, defendant's motion is denied.

4. M-CV-0096159 CRP/VDH Fiddymment Ranch v. Richardson, Latoya Denise

Application to Stay Execution of Judgment

In this unlawful detainer matter, defendant Latoya Denise Richardson seeks a stay of execution of judgment through July 7, 2026. The court's June 23, 2026 and June 24, 2026 orders scheduling this hearing directed defendant to serve plaintiff copies of the application for stay and the court's orders and to file proof of service with the court. These orders further provided, "Failure to timely serve and timely file a proof of service with the court is a sufficient basis for the court to deny further relief." There is no evidence in the court's file that defendant served plaintiff the application or the court's orders. The court declines to extend the stay of execution of judgment and the current stay will expire, as previously ordered, on June 30, 2026 at 11:59 p.m.

5. M-CV-0097039 US Housing Partners v. Hennen, Kevin R

Motion to Stay Execution of Judgment

In this unlawful detainer matter, defendant Kevin Hennen seeks a stay of execution of judgment through December 12, 2026. The court's June 9, 2026 and June 23, 2026 orders scheduling this hearing directed defendant to serve plaintiff copies of the application for stay and the court's orders and to file proof of service with the court. These orders further provided, "Failure to timely serve and timely file a proof of service with the court is a sufficient basis for the court to deny further relief." There is no evidence in the court's file that defendant served plaintiff the application or the court's orders. Plaintiff filed an opposition specifying defendant never served these documents. The court declines to extend the stay of execution of judgment. The current stay will expire, per the court's June 23, 2026 order, on June 30, 2026 at 11:59 p.m.

6. S-CV-0024903 All Points Capital v. Fill, Daniel

The motion to vacate judgment is dropped from calendar as no moving papers were filed with the court.

7. S-CV-0043355 Kirby, William W v. Toplean, Pete

Judgment creditors are advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Reconsideration

Plaintiffs and judgment creditors James W. Kirby and Sarah Kirby-Gonzalez move the court to reconsider its February 11, 2026 ruling denying an order to sell real property. The motion is unopposed.

Relevant Procedural History

On September 1, 2020, judgment was entered in this action for judgment creditors against judgment debtors Pete Toplean and Top Investment Property, LLC in the amount of \$182,916. Judgment creditors filed an application for an order for sale of a dwelling that had been owned by judgment debtors Pete Toplean and Top Investment Property, LLC but has been transferred to a third party, Akashbir S. Mann. On October 28, 2025, when the application first came on for hearing, the court continued the matter to permit judgment creditors to file and serve a declaration referenced in but not included with the application. Judgment creditors filed a declaration of James W. Kirby on November 7, 2025. At the continued hearing, the court issued a tentative ruling denying the application for various deficiencies. At oral argument, judgment creditors requested another continuance, which the court permitted. On January 29, 2026, judgment creditors filed a declaration of James W. Kirby, an amended declaration of James W. Kirby, and a supplemental brief. At the second continued hearing, the court issued another tentative ruling denying the application for various deficiencies. At oral argument, judgment creditors requested the opportunity to submit additional information, which the court permitted and deemed the matter under submission on February 10, 2026. Judgment creditors filed a supplemental declaration on February 10, 2026. The court issued its ruling on submitted matter on February 11, 2026, denying the application because (1) the notice of levy as provided as Exhibit A to the February 10, 2026 Kirby declaration was addressed to the Placer County Recorder rather than the person against whom an order for sale of dwelling is sought; (2) failure to submit a copy of the recorded abstract of judgment, and (3) no citation to authority that would permit this court to order the sale of real property in this enforcement of judgments action against a third-party purchaser. Judgment creditors timely moved the court for reconsideration.

Ruling on the Motion

Preliminarily, the motion was initially filed on March 2, 2026 and served with sufficient notice. An amended motion was filed on June 8, 2026, only 15 court days prior to the hearing. The amended motion was served by mail on June 5, 2026 and personally on June 6, 2026. Under either calculation, notice was deficient. As the motion may not be granted based on this procedural deficiency, the court elects to reach the merits.

A motion for reconsideration requires a showing of new or different facts, circumstances, or law along with a satisfactory explanation as to why the evidence was not presented at an earlier time. (Code Civ. Proc., § 1008; *Shiffer v. CBS Corp.* (2015) 240 Cal.App.4th 246, 255.) The moving party bears the burden of showing that the information supporting reconsideration is such that the moving party could not, with reasonable diligence, have discovered or produced it earlier. (*New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 212–13.)

Here, judgment creditors respond to the court’s first concern by providing proofs of service of notice of levy as Exhibit B. Judgment creditors indicate they did not have these proofs of service from the sheriff’s department back when the motion was originally heard. While the court takes judgment creditors at their word that they did not have these documents when the motion was originally heard, these documents do not change the outcome of the motion because they do not address the court’s concern as judgment creditors have not provided a notice of levy directed to any judgment debtor. As to the court’s second concern regarding the recorded abstract of judgment, judgment creditors correctly point out that they did provide the recorded abstract of judgment provided as Exhibit L to the Kirby declaration filed January 29, 2026. While the court acknowledges its mistake, this does not change the outcome of the motion. Judgment creditors next re-brief the issue of forcing a sale of real property against a third-party purchaser in the underlying enforcement of judgment action. Judgment creditors cite to portions of *Miller and Starr*, Code of Civil Procedure section 697.390, and *Federal Deposit Ins. Corp. v. Charlton* (1993) 17 Cal.App.4th 1066. Of the new authorities cited, judgment creditors fail to present any reason why they could not have been cited when the motion was initially heard. Moreover, judgment creditors continue to focus on the language in *Charlton* that the judgment lien was enforceable against a third-party purchaser while failing to acknowledge that the third-party purchaser was a party in the *Charlton* case. Judgment creditors still have not cited to any authority that supports an order for sale of real property may be made against a non-party to an action out of the underlying enforcement of judgments action.

In sum, judgment creditors fall short of showing newly discovered information that could not have reasonably been presented to the court when this motion was initially decided. The motion for reconsideration is denied.

8. S-CV-0045347 Grayot, Chad v. Exclusive Auto Group

Request to Seal Records

Plaintiff and defendant Exclusive Auto Group, Inc., through their respective counsel, submitted to the court a stipulation and proposed order thereon to seal seven documents that have already been filed into this case. The court issued a Presiding Judge Notice setting this hearing. The parties have not submitted any additional information in the intervening time.

The request is procedurally and substantively deficient in a number of ways and cannot be granted. Preliminarily, when the clerk served the presiding judge notice, it served only the party who submitted the stipulation and proposed order—the plaintiff. There is no evidence defendant has been served notice of this hearing.

This request is not supported by a “declaration containing facts sufficient to justify the sealing” as required. (Cal. Rules of Court, rule 2.551(b)(1).) As the application is unsupported by any evidence, the court cannot make the requisite findings outlined in California Rules of Court, rule 2.550(d).

Even if the court could reach the merits, the court questions whether protecting plaintiff’s reputation as a businessperson is an “overriding interest that overcomes the right of public access to the record” as required by California Rules of Court, rule 2.550(d)(1).

Also, while the parties submitted the proposed redacted versions of the documents as an attachment to the stipulation and proposed order, and it appears they went to some lengths to specify what portions of the documents they are requesting to be sealed, the parties’ failure to lodge an unredacted version of the entirety of the 517 pages submitted with the stipulation pursuant to California Rules of Court, rule 2.551(b)(4) and the confusing descriptions of the locations of the documents (for example, “Exhibit 1 at Exhibit 5, at Attachment 1 at 7:18–19”) have made it overly cumbersome for the court to locate the proposed redacted portions of the documents and compare them with the unredacted documents already in the court file to determine if the proposed redactions are narrowly tailored.

Based on the foregoing, the request is denied without prejudice. Should the parties elect to renew the request, they shall do so by properly noticed motion in accordance with Rules 2.550 and 2.551 in the California Rules of Court.

9. S-CV-0049793 Ratzak, Jessica v. Thinkware Systems USA

Motion for Preliminary Approval

Plaintiff seeks preliminary approval of the parties’ class action settlement. The motion is unopposed. The court previously raised three concerns and continued the hearing for plaintiff to address those concerns. On June 16, 2026, plaintiff filed a supplemental declaration of counsel Todd M. Friedman with a supplemental declaration of Brandon Schwartz attached as Exhibit 1 thereto. This supplemental filing sufficiently addresses the court’s second and third noted concerns.

As to the court’s first noted concern, however, plaintiff provides that counsel has already served subpoenas on known third-party retailers and negotiated the response or received subpoenaed information from several of those third-party retailers. Plaintiff has not heard back from AAMP, which comprises approximately 19.4% of the sales of class products. Plaintiff states it sent a second subpoena on June 16, 2026, but plaintiff nonetheless believes the proposed timeframe (which includes notice to the class within 20 days of

preliminary approval) is sufficient. Counsel goes on to say, “If there are any delays we will be sure to provide those class members who purchased from AMMP [*sic*] additional time to make a claim, opt out or object and we will advise the Court of these issues prior to final approval.” (Friedman Decl., ¶ 8.)

Rather than grant preliminary approval that could result in two different timelines depending on the timing of receipt of subpoenaed records, the court on its own motion continues the motion for preliminary hearing once more to be heard on **August 11, 2026 at 8:30 a.m. in Department 32**. Please note the new department. By July 28, 2026, plaintiff shall file and serve a notice of continued hearing and supplemental declaration(s) to update the court on whether the subpoenaed information has been received or negotiated.

10. S-CV-0050979 Pearson, James v. Kaiser Found. Hospitals

Defendants are advised the notice of motion must include notice of the court’s tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Summary Judgment or, in the Alternative, Summary Adjudication

Defendants Kaiser Foundation Hospitals and The Permanente Medical Group, Inc. (“Kaiser defendants”) move for summary judgment contending the undisputed facts show they did not violate the ADA, the California Unruh Act, or the California Disabled Persons Act. Plaintiff opposes the motion.

The motion is supported by insufficient notice. A motion for summary judgment “shall be served on all other parties to the action at least 81 days before the time appointed for hearing.” (Code Civ. Proc., § 437c, subd. (a)(2).) Notice is extended by two court days when, as here, service is by electronic means. (Code Civ. Proc., § 1010.6, subd. (a)(2)(B).) Here, the motion was served on the 81st day without accounting for the two additional court days’ notice for electronic service. The motion for summary judgment or adjudication is denied due to insufficient notice.

11. S-CV-0053141 Hostler, Grace v. Ternavsky, Alex

Counsel is advised the notice of motion must include notice of the court’s tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion to Be Relieved as Counsel

The motion to be relieved as counsel is denied without prejudice. Counsel declared they served the client by mail at the client’s last known address, and that they confirmed the address was current by correspondence, addressed to the client at her last known address, which had not been returned undeliverable. However, this act alone is insufficient to demonstrate the address is “current” pursuant to California Rule of Court 3.1362(d). (Cal. Rules of Court, rule 3.1362(d).)

The court also observes that counsel listed the address to Madera County Superior Court on form MC-052, which could potentially create a notice issue.

12. S-CV-0054299 Gomez, Hector Ortega v. Entrussed

Plaintiff is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Preliminary Approval

Plaintiff seeks preliminary approval of the parties' class action and PAGA settlement. No opposition has been filed.

The court has broad discretion in determining whether a class action settlement is (1) fair and reasonable, (2) the class notice is adequate, and (3) certification of the class is proper. (*In re Cellphone Fee Termination Cases* (2010) 186 Cal.App.4th 1380, 1389.) Further, the court reviews the moving papers along with the entirety of the court file to determine that the settlement is genuine, meaningful, and consistent with the underlying purposes of the PAGA-related statute. (Lab. Code, § 2699(l); *O'Connor v. Uber Technologies, Inc.* (N.D. Cal. 2016) 201 F.Supp.3d 1110.) The court must also determine whether the PAGA settlement appears fundamentally fair, reasonable, and adequate. (*Ibid.*)

The court has carefully considered the class action and PAGA settlement agreement and plaintiff's moving papers filed in connection with the motion, the supplemental declaration of counsel and exhibit thereto, as well as the entire court file. The court determines a sufficient showing has been made that the settlement is fair, reasonable, genuine, meaningful, and consistent with the purpose of PAGA.

For the purposes of the settlement, the court hereby certifies the class for the purposes of settlement as, "all non-exempt employees who are or previously were employed by Entrussed, LLC ("Defendant") in California ("Class") between December 24, 2020 to December 29, 2025 ("Class Period")."

The court preliminarily approves the class action and PAGA action settlement agreement attached as Exhibit A to the declaration of counsel Barvie filed on April 17, 2026.

The court also approves the proposed form of class notice attached to Exhibit A to the declaration of counsel Barvie, with three small changes: The proposed notice references the final approval hearing on page 3 and twice on page 11 and in all three places specifies Department 40. The Department for the final approval hearing shall be Department 32. With this change, the court approves the proposed class notice.

The court appoints and designates Hector Ortega Gomez as the class representative. The court appoints and designates Barvie Law, APC as class counsel for the purpose of settlement. The court appoints and designates Apex Class Action, LLC as the settlement

administrator. The court also incorporates by reference all findings and orders set forth in the Proposed Order submitted on April 17, 2026.

The final approval hearing is scheduled for **January 5, 2027 at 8:30 a.m. in Department 32**. The motion for final approval shall be filed and served in accordance with Code of Civil Procedure section 1005(b).

13. S-CV-0054481 Phillips, Torah v. Dupont, Andrew

Petition for Approval of Compromise of Claim of Proceeds of Judgment for Minor

The petition for approval of minor's compromise claim is granted. After careful consideration of the petition and attachments, the court finds the settlement is in the best interest of the minor. (Prob. Code, § 3500; Code Civ. Proc., § 372; *Pearson v. Superior Court* (2012) 202 Cal.App.4th 1333, 1337-38.)

14. S-CV-0055110 Taylor, Alexandria v. K-Love Inc.

Moving party is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Demurrer to First Amended Complaint

Judicial Notice

Defendants' request judicial notice of the following in support of the demurrer:

1. Plaintiff's original complaint filed on April 23, 2025, which is attached as Exhibit A.
2. The amended and restated articles of incorporation of Educational Media Foundation, establishing itself and K-Love as religious corporations not organized for the private gain of any person, which is on file with California Secretary of State and is attached as Exhibit B.

Defendants' request for judicial notice is granted.

Request for Statement of Decision

Defendants' request for a statement of decision is denied. A ruling on a demurrer is not a trial of a question of fact. (See Code Civ. Proc. § 632.) Nor does the court's ruling constitute an order or judgment in a matter involving a petition to compel arbitration. (See Code Civ. Proc. § 1291.)

Ruling on Motion

Defendants demur to each cause of action alleged in plaintiff's first amended complaint (FAC). Plaintiff opposes the motion.

A party may demur where the pleading does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10 (e).) A demurrer tests the legal sufficiency of the pleadings, not the truth of the allegations or the accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleadings are deemed true no matter how improbable they may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, the court does not assume the truth of contentions, deductions, or conclusions of facts or law. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court may only refer to matters outside the pleading that are subject to judicial notice. (*Rea v. Blue Shield of California* (2014) 226 Cal.App.4th 1209, 1223.)

Preliminarily, defendants invoke the sham pleading doctrine and ask the court to consider an allegation in plaintiff's original complaint that was deleted in the first amended complaint, that defendant K-LOVE is "the world's largest Christian broadcasting network." (See defendants' request for judicial notice, Exh. A at ¶ 19; *see also Hendy v. Losse* (1991) 54 Cal.3d 723, 742-43.) Plaintiff's opposition does not address this argument, nor did plaintiff object to defendants' request for judicial notice. The court agrees the allegation may be considered for the purpose of analyzing the present demurrer.

FEHA Claims

Plaintiff's second through fourth causes of action allege gender and race discrimination, retaliation, and failure to prevent discrimination or retaliation, under the Fair Employment and Housing Act (FEHA). FEHA prohibits discrimination and retaliation by "employers." (Govt. Code §§ 12900, et seq.) Under FEHA, a religious association or corporation not organized for private profit is not an "employer". (Govt. Code § 12926(d); *see also* Code Regs. tit. 2, § 11008(d)(5).) These words are to be interpreted broadly to encompass "any entity with colorable religious motivation and substantial bona fide religious affiliations." (*Kelly v. Methodist Hosp. of So. Cal.* (2000) 22 Cal.4th 1108, 1125.) The exemption is not conditioned on the nature of the employee's job, but rather the nature of the entity that employs him or her. (*Id.* at 1116.)

This court sustained defendants' demurrer to plaintiff's complaint, granting plaintiff leave to file an amended complaint. Plaintiff has failed to cure the deficiencies in her first amended complaint as to the second through fourth causes of action and does not identify any additional allegations which could cure the deficiencies. The demurrer is sustained without leave to amend as to the second through fourth causes of action.

California Equal Pay Act

Plaintiff's first cause of action alleges violation of the California Equal Pay Act. Defendants argue the ministerial exception bars this claim, relying on *Markel v. Union of Orthodox* (2024) 124 F.4th 796, *Our Lady of Guadalupe School v. Morrissey-Berru* (2020) 140 S.Ct. 2049, and *Spencer v. World Vision* (9th Cir. 2011) (per curiam) 633 F.3d 723. The court notes that each of the foregoing cases involved summary judgment motions, and the court's consideration of facts and evidence in order to determine if the defendants were "religious institutions" and if the plaintiffs were "ministers" under the ministerial exception. For the purpose of ruling on a demurrer, the court may only consider the allegations of the pleading and matters subject to judicial notice. It may not consider factual assertions made in the moving papers, or in declarations of the parties, which are outside of the four corners of the FAC.

While the ministerial exception may be raised on demurrer, it is only appropriately resolved at the pleading stage if the applicability of the defense is clear from the face of the complaint or from judicially noticeable facts. (*Gunn v. Mariners Church, Inc.* (2008) 167 Cal.App.4th 206, 221-22.) The ministerial exception does not apply simply because an employer is religious in nature. The relevant inquiry is whether the employee performed important religious functions. (*Our Lady of Guadalupe, supra*, 591 U.S. at 753-54.)

Here, application of the ministerial exception is not apparent from the face of the FAC and the judicially noticed facts. The demurrer is overruled as to the first cause of action.

Wrongful Termination in Violation of Public Policy

Plaintiff's fifth cause of action alleges wrongful termination in violation of public policy. A claim for wrongful termination is established where an employee is terminated for reasons that violate fundamental public policies embodied in statute, including those prohibiting discrimination and retaliation. In light of the court's ruling overruling the demurrer as to the first cause of action for violation of the Equal Pay Act, plaintiff's claim for wrongful termination in violation of public policy is likewise adequately stated.

The demurrer is overruled as to the fifth cause of action.

Defendants shall file an answer to plaintiff's first amended complaint on or before **July 10, 2026**.

Motion to Stay and Protective Order

Defendants' motion to stay all discovery pending the court's ruling on the demurrer is denied as moot.

15. **S-CV-0055189 Dentoni, Diana Jean v. Colfax Mini Storage**

Plaintiff's Motion for Reconsideration

Plaintiff moves for the court to reconsider its order granting defendants' motion to compel arbitration and motion to stay the matter pending completion of arbitration.

A motion for reconsideration must be made "within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law. . ." (Code Civ. Proc., § 1008, subd. (a).) The motion must include an affidavit that details "what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown." (*Ibid.*) The motion must also present a satisfactory explanation as to why the evidence was not presented at an earlier time. (Code Civ. Proc., § 1008; *Shiffer v. CBS Corp.* (2015) 240 Cal.App.4th 246, 255.) The moving party bears the burden of showing that the information supporting reconsideration is such that the moving party could not, with reasonable diligence, have discovered or produced it earlier. (*New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 212-13.)

Plaintiff's motion is not supported by declaration or affidavit and therefore fails to satisfy the procedural requirements of a motion for reconsideration. Plaintiff identifies defendants' assertion, contained in defendants' supplemental reply filed February 24, 2026, that a fully executed copy of the rental agreement was emailed to plaintiff on March 19, 2024. Plaintiff was aware of this information at the time of the court's hearing on this matter on March 17, 2026.

Plaintiff states the California Supreme Court's recent decision on February 2, 2026, in *Fuentes v. Empire Nissan, Inc.* (19 Cal. 5th 93, 102) provides new law that further supports reconsideration. Again, this information existed at the time of the hearing. In any case, the holding of *Fuentes* does not require a different result here. *Fuentes* involved an arbitration agreement contained in an employment agreement between the parties. The Court noting numerous facts and circumstances constituting significant oppression in the manner the agreement was presented. The Court also noted the agreement itself was contained in tiny, blurry, almost indecipherable font, and:

Once the text is deciphered, the agreement's language presents a further barrier to understanding: The reader is confronted with a collection of complex sentences replete with legal jargon and statutory references. As the Court of Appeal observed, the arbitration agreement consists of a "mammoth" paragraph consisting of "something like 900 words," with 35 lines squeezed into "about three vertical inches" of text. One sentence, by itself, is 214 words long. The paragraph refers to six different statutes by name, in addition to referring generally to "other applicable state or federal laws or regulations." The paragraph also refers to various government agencies and cites, without explanation, several sections of the California code.

(*Fuentes*, 19 Cal.5th at pgs. 104-05.)

The facts of *Fuentes* are significantly distinguishable from the facts of the instant case. The holding of *Fuentes*, even if it had been decided after the hearing on defendants' motion, does not warrant a different result.

Finally, plaintiff requests relief under CCP § 473(b) because the tentative ruling was adopted without oral argument due to plaintiff's untimely request. Section 473(b) permits a court, in its discretion, to "relieve a party from a judgment, dismissal, order, or other proceeding taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect." (Civ. Code. Proc., § 473(b).) The moving party bears the burden to show a specific ground under the statute and to establish diligence and lack of prejudice. (*Id.*)

Given that plaintiff's motion is not supported by declaration, she fails to demonstrate any mistake, inadvertence, surprise or excusable neglect warranting relief from the court's prior order. Nor does plaintiff establish any likelihood of a different outcome if she had timely requested oral argument.

Plaintiff's motion for reconsideration is denied.

16. S-CV-0055969 Zick, Tanner v. Burachek, Zhanna

Petition for Approval of Compromise of Claim of Proceeds of Judgment for Minor

The petition for approval of minor's compromise claim is granted. After careful consideration of the petition and attachments, the court finds the settlement is in the best interest of the minor. (Prob. Code, § 3500; Code Civ. Proc., § 372; *Pearson v. Superior Court* (2012) 202 Cal.App.4th 1333, 1337-38.)

17. S-CV-0056437 Faulkmer, Steven v. MCVDB

Defendants' Motion for Judgment on the Pleadings

Defendants' request for judicial notice is granted.

Defendants move for judgment on the pleadings. Plaintiff opposes the motion.

"A motion for judgment on the pleadings is the functional equivalent of a general demurrer." (*Spencer v. City of Palos Verdes Estates* (2023) 88 Cal.App.5th 849, 861.) As such, the grounds for the motion for judgment on the pleadings must appear on the face of the complaint and any judicially noticeable documents. (*Ibid.*) Further, the court must accept as true all material factual allegations in the complaint. (*Ibid.*) The court may take judicial notice of a defendant's uncontroverted admissions in responses to request for admissions or interrogatories. (*Arce v. Kaiser Foundation Health Plan, Inc.* (2010) 181

Cal.App.4th 471, 485; *see also Evans v. California Trailer Court, Inc.* (1994) 28 Cal.App.4th 540, 549, disapproved on other grounds in *Black Sky Capital LLC v. Cobb* (2019) 7 Cal.5th 156.) The court, however, does not accept the truth of contentions, deductions, or conclusions of law. (*Spencer*, 88 Cal.App.5th at 861.)

Defendants bring this motion on the basis the complaint alleges the date of plaintiff's personal injury was September 27, 2023 and the filing date stamps on the summons and complaint are October 17, 2025. (See Chase Decl. Exh. 1.) Therefore, the time for filing the action has expired, pursuant to California Code of Civil Procedure § 335.1 (establishing a two-year deadline for filing personal injury actions.) (Mot. J. Pleadings at 4.) Plaintiff concedes the complaint is untimely, due to excusable neglect. (See Pl. Opp'n at 6.) Plaintiff also argues for equitable tolling. See *id.* at 3-5.)

The Court of Appeal has addressed the equitable tolling argument with regard to counsel's argued excusable neglect. "Plaintiffs have cited no cases, and we have found none, holding that delay due to attorney neglect qualifies as 'reasonable and good faith conduct on the part of the plaintiff' within the meaning of the equitable tolling doctrine. *Addison v. State of California* (1978) 21 Cal.3d 313, 319. Indeed, the opposite is true. (*Ibid.*; *Cf. Castro v. Sacramento County Fire Protection Dist.* (1996) 47 Cal.App.4th 927, 928-29 (attorney neglect is not a basis upon which to set aside a judgment of dismissal for failure to comply with statute of limitations); *Todd v. County of Los Angeles* (1977) 74 Cal.App.3d 661, 666 (counsel's negligence does not excuse the untimely filing of a lawsuit). (*Bonifield v. County of Nevada* (2001) 94 Cal.App.4th 298, 306 (overruled, in part, on other grounds).)

Defendant's motion for judgment on the pleadings is granted. The motion is granted without leave to amend because plaintiff is unable to cure his untimely complaint as the statute of limitations has passed.

18. S-CV-0056771 Hammick, James Hunter v. Vernon, Jeffrey Jace

Specially Appearing Defendants' Motion to Quash Service of Summons for Lack of Personal Jurisdiction

Request for Judicial Notice

Plaintiff and defendants' request for judicial notice is granted.

Ruling on Motion

Specially appearing defendants RentDue Capital Fund 2 LLC, Rentdue Capital LLC, Jeffrey Jace Vernon and Ann Vernon move to quash service of summons based on lack of personal jurisdiction pursuant to Code of Civil Procedure section 418.10. Plaintiff opposes the motion. Previously, the court granted plaintiff leave to engage in limited discovery on the issue of personal jurisdiction and permitted supplemental briefing.

Motion to Quash

A defendant may move to quash service of summons based on a lack of personal jurisdiction. (Code Civ. Proc., § 418.10, subd. (a)(1).) When a defendant challenges the court's personal jurisdiction over it, the burden shifts to plaintiff to establish "by a preponderance of the evidence that minimum contacts exist between the defendant and the forum state to justify imposition of personal jurisdiction. (*Elkman v. National States Ins. Co.* (2009) 173 Cal.App.4th 1305, 1312-13.) Plaintiffs meet their burden to establish minimum contacts exist to impose personal jurisdiction by providing "specific evidentiary facts, through affidavits and other authenticated documents, sufficient to allow the court to independently conclude whether jurisdiction is appropriate and cannot rely on allegations in an unverified complaint or vague and conclusory assertions of ultimate facts." (*Swenberg v. Dmarcian, Inc.* (2021) 68 Cal.App.5th 280, 291.) If plaintiffs meet their burden, the burden shifts back to defendants to "demonstrate that the exercise of jurisdiction would be unreasonable." (*Buchanan v. Soto* (2015) 241 Cal.App.4th 1353, 1362.)

Minimum Contacts

Plaintiff argues minimum contacts based on (1) defendants solicited plaintiff, a California resident, while he was located in California; (2) plaintiff wired investment funds from California banks; (3) defendants transmitted investment updates, reports, and other communications into California; and (4) plaintiff suffered economic injury in California as a direct result of defendants' forum-directed conduct. (Pl. Supp Opp'n at 3.) Plaintiff states defendants' own records confirm three separate subscription agreements were executed by plaintiff from California over the course of several months. The first agreement reflects that defendant Vernon executed from Zapopan, Mexico, while subsequent agreements reflect defendant Vernon executing from Utah and Arizona. (Pl. Supp Opp'n at 3, Exh. Z.) Plaintiff states the execution of three separate agreements over several months establishes that defendants created continuing obligations with a California resident. Plaintiff argues this constitutes purposeful availment because defendants knowingly entered into and maintained an ongoing business relationship directed toward California. (Pl. Supp Opp'n at 4 citing *Burger King Corp. v. Rudzewicz* (1985) 471 U.S. 462 and *Hall v. LaRonde* (1997) 56 Cal.App.4th 1342, 1347-48.) Plaintiff further argues operational activities, investor communications, administrative operations, and business activities relating to the investment program were conducted primarily from Utah. (Pl. Supp. Exh. O). The fund had no physical office or employees in Wyoming. (*Id.*)

Specific jurisdiction

California's long-arm statute extends only "on any basis not inconsistent with the constitution of this state or of the United States." Code of Civil Procedure section 410.10. Generally, three requirements must be satisfied for California court to exercise specific jurisdiction over nonresident defendant: (1) defendant must purposefully avail themselves of forum benefits; (2) controversy must be related to or arise out of defendant's forum

contacts; and (3) assertion of personal jurisdiction must comport with fair play and substantial justice. Cal. Civ. Proc. Code § 410.10. *ParaFi Digital Opportunities LP v. Egorov* (2025) 108 Cal.App.5th 124. The Supreme Court has observed that “the plaintiff cannot be the only link between the defendant and the forum,” and that “the defendant’s suit-related conduct must create a substantial connection with the forum state.” *Walden v. Fiore* (2014) 571 U.S. 277, 285. In context of requirement for exercise of specific jurisdiction over nonresident defendant that defendant purposefully avail itself of forum state, unilateral activity of plaintiff cannot support exercise of jurisdiction, even when intentional torts are involved. Cal. Civ. Proc. Code § 410.10. *ParaFi Digital Opportunities LP, supra*, 108 Cal.App.5th 124.

Analysis

Defendants’ alleged contacts with California do not demonstrate purposeful availment of California. In *ParaFi Digital Opportunities LP, supra*, 108 Cal.App.5th 124, the Court of Appeals observed, “[o]ther than accepting plaintiffs’ request to invest in Curve, there is no indication that Egorov opened the “little round” of fundraising to California residents generally or otherwise solicited California investors. Egorov never visited California to market Curve, to seek out investors, or even to meet with plaintiffs during negotiations.” (*Ibid.* at 136. *C.f. West Corp. v. Superior Court* (2004) 116 Cal.App.4th 1167, 1176 (concluding telemarketers who upsell a product to residents of a forum state have purposefully availed themselves of the privileges of conducting activities within the forum state.))

Plaintiff argues defendants created an ongoing relationship. (Pl. Supp Opp’n at 4.) However, the Court of Appeals has found “merely receiving payment from California investors is not sufficient to demonstrate purposeful availment.” (See, e.g., *Elkman v. National States Ins. Co.* (2009) 173 Cal.App.4th 1305, 1321. And any alleged misuse of the investment funds occurred in Switzerland, where Egorov and Swiss Stake were located.” *ParaFi Digital Opportunities LP, supra*, 108 Cal.App.5th at 137.

Plaintiff argues under *Calder v. Jones* (1984) 465 U.S. 783, jurisdiction exists where a defendant commits an intentional act expressly aimed at the forum that causes foreseeable harm there. But the Supreme Court has found “mere injury to a forum resident is not a sufficient connection to the forum.” (*Walden, supra*, 571 U.S. at 290.) And “[s]imply directing conduct at a plaintiff knowing that she has significant California connections does not satisfy the minimum contacts inquiry.” (*David L. v. Superior Court* (2018) 29 Cal.App.5th 359, 374.

Plaintiff argues the court should not enforce the forum selection clause. (Pl. Supp Opp’n at 11-12.) However, the relevant fact is the agreement contains a forum selection clause outside of California. “Under the contracts test, courts look to “prior negotiations and contemplated future consequences, along with the terms of the contract and the parties’ actual course of dealing” to evaluate purposeful availment. (*Burger King Corp., supra*, 471 U.S. at 479.) Therefore, both the “terms of the contract” and “contemplated future consequences” reinforce the finding that [the defendant] could not reasonably foresee

litigation in [California.] (*Id.* at 479, 482; *ParaFi Digital Opportunities LP*, *supra*, 108 Cal.App.5th at 140.)

Plaintiff argues defendants directed communications to California. (See Pl. Supp Opp’n.) However, the ordinary “use of the mails, telephone, or other international communications simply do not qualify as purposeful activity invoking the benefits and protection of the [forum] state.” (*Peterson v. Kennedy* (9th Cir. 1985) 771 F.2d 1244, 1262.

Similarly, in this case, there is no evidence that defendants directly solicited California investors. Receiving payments from California is insufficient to show minimum contacts. The alleged torts committed by defendants occurred outside California. The terms of the agreement contemplated any possible future litigation outside of California. Communications are insufficient to show minimum contacts. Finally, plaintiff’s injury does not tie the defendants to the forum state. Therefore, plaintiff does not meet his burden to establish defendants have minimum contacts with California to impose personal jurisdiction over defendants.

Conclusion

Accordingly, defendants’ motion to quash is granted. The summons issued to defendants RentDue Capital Fund 2 LLC, Rentdue Capital LLC, Jeffrey Jace Vernon, and Ann Vernon on December 29, 2025, is quashed. Defendants RentDue Capital Fund 2 LLC, Rentdue Capital LLC, Jeffrey Jace Vernon, and Ann Vernon are dismissed from the action without prejudice.

Defendant Talease Perkins’ Demurrer to Plaintiff’s Complaint

Defendant Talease Perkins demurs to plaintiff’s complaint. Plaintiff opposes the motion.

A party may demur where the pleading does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10 (e).) A demurrer tests the legal sufficiency of the pleadings, not the truth of the allegations or the accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleadings are deemed true no matter how improbable they may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, the court does not assume the truth of contentions, deductions, or conclusions of facts or law. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court may only refer to matters outside the pleading that are subject to judicial notice. (*Rea v. Blue Shield of California* (2014) 226 Cal.App.4th 1209, 1223.)

A complaint for fraud must allege the following elements: (1) a knowingly false representation by the defendant; (2) an intent to deceive or induce reliance; (3) justifiable reliance by the plaintiff; and (4) resulting damages. Every element must be specifically pleaded. *Service by Medallion, Inc. v. Clorox Co.* (1996) 44 Cal.App.4th 1807, 1816. To state a claim for negligent misrepresentation, plaintiff must allege the following elements:

misrepresentation of a past or existing material fact, without reasonable ground for believing it to be true, with intent to induce another's reliance on the fact misrepresented; ignorance of the truth; justifiable reliance on the misrepresentation by the plaintiff; and resulting damage. (*Shamsian v. Atlantic Richfield Co.* (2003) 107 Cal.App.4th 967, 983.) Negligent misrepresentation must be pleaded with sufficient particularity that shows "how, when, where, to whom, and by what means the representations were tendered." (*Stansfield v. Starkey* (1990) 220 Cal.App.3d 59, 73.)

The demurrer is sustained with leave to amend as to the first and third causes of action. Plaintiff fails to allege each element of these claims as to defendant Talease Perkins with requisite specificity.

The elements of a civil conspiracy are (1) the formation of a group of two or more persons who agreed to a common plan or design to commit a tortious act; (2) a wrongful act committed pursuant to the agreement; and (3) resulting damages. *City of Industry v. City of Fillmore* (2011) 198 Cal.App.4th 191, 212, as modified (Aug. 24, 2011).

The demurrer is sustained with leave to amend as to the fifth cause of action. Plaintiff fails to allege each element of this claim with regard to defendant Talease Perkins.

The elements of an unjust enrichment claim are the receipt of a benefit and the unjust retention of the benefit at the expense of another. *Peterson v. Celco Partnership* (2008) 164 Cal.App.4th 1583, 1593.

The demurrer is sustained with leave to amend as to the sixth cause of action. Plaintiff fails to allege each element of this claim with regard to defendant Talease Perkins.

To state a civil violation of California's statute prohibiting receipt of stolen property, a plaintiff must plead three elements: (a) the property was stolen, and (b) the defendant was in possession of it, (c) knowing it was stolen. *Hueso v. Select Portfolio Servicing, Inc.*, S.D. Cal. (2021) 527 F.Supp.3d 1210.

The demurrer is sustained with leave to amend as to the eighth cause of action. Plaintiff fails to allege each element of this claim with regard to defendant Talease Perkins.

Corporations code section 25401 makes it unlawful to offer or sell a security in California by means of a communication that includes a false statement of material fact, or omits a material fact necessary to make the statement communicated not misleading. Section 25501 provides that any person violating section 25401 is liable to the purchaser, and "[u]pon rescission, a purchaser may recover the consideration paid for the security, plus interest at the legal rate, less the amount of any income received on the security, upon tender of the security." Corp. Code, § 25401. *Boam v. Trident Financial Corp.* (1992) 6 Cal.App.4th 738, 742.

The demurrer is sustained with leave to amend as to the ninth cause of action. Plaintiff fails to allege each element of this claim with regard to defendant Talease Perkins.

Any amended complaint shall be filed and served on or before **July 10, 2026**.

Defendants' Motion to Strike Portions of Plaintiff's Complaint

Defendants' motion to strike portions of plaintiff's complaint is denied as moot in light of the court granting plaintiff leave to amend his complaint.

19. S-CV-0056877 In re the Petition of Furiosi, Marcella

Amended Petition for Compromise of the Claim of Minor

Petitioner Marcella Furiosi petitions for approval of compromise of the claim of minor Beau Podesta. The court issued a notice of intended ruling on May 18, 2026, indicating the petition does not conform to the requirements of the Probate Code and setting this hearing. Since then, no amended petition has been filed for the court's review.

Petitioner requests relief that does not conform to the requirements of the Probate Code. Petitioner requests that the balance of the settlement funds, after payment of fees, medical expenses, and costs, be deposited in a blocked account at MVB Bank in Fairmont, West Virginia. Pursuant to Probate Code section 3611(b), deposits in a blocked account are to be with "a financial institution *in this state . . .*" (Emphasis added.) The proposed bank is not within California.

Because the petition seeks relief not in conformity with the application provisions of the Probate Code it is denied without prejudice. If oral argument is requested, the appearance of the minor at the hearing is waived.

20. S-CV-0057053 CrossCountry Mortgage v. Pankow, Michael

The petition to confirm arbitration award is dropped from calendar in light of the notice of stay of proceedings filed on April 6, 2026. The petition may be re-noticed after the stay has been lifted.

The court on its own motion schedules this matter for an order to show cause hearing regarding status of bankruptcy stay on **September 29, 2026 at 9:00 a.m. in Department 32**.
